Calderwood Partners LLC

www.calderwoodpartners.com

April 12, 2009

Joseph Wallace

Chief Financial Officer

Carroll, Merritt and Williams

Re: Post-Merger Integration

Dear Mr. Wallace:

This letter sets out the terms on which we will assist Carroll, Merritt and Williams with the integration of the two businesses now brought under common ownership. It records the work we will perform, the people who will perform it, the fee, and the conditions under which we work. We have written it to be read alongside your own recollection of our conversations. If any term here differs from what you expected, please telephone me before you countersign, so that we correct it at the outset rather than find it later. An engagement of this kind depends on both sides holding the same understanding of scope from the first day, and this letter is where that understanding is fixed.

Scope of the Engagement

Our work covers the operational integration of the combined company, and within that it does four things. We will construct a single reconciled view of the two organizations as they stand today, covering headcount, reporting lines, and the functions that now sit in duplicate. We will build a cost baseline for the combined business from your existing management accounts, so that the decisions that follow rest on a figure both sides accept. We will design a target operating model for the functions in scope, naming where work should sit in the combined structure and what that structure requires to run. And we will set out a prioritized integration plan for roughly the first hundred days, sequencing the decisions that cannot wait ahead of the ones that can.

Several matters sit outside this engagement, and I will name them so that our respective expectations are on the record. This is not an audit, a review, or any attestation on your financial statements, and it produces no opinion on them. We do not value the transaction or comment on the price paid for it. We do not provide legal or tax advice; where a question turns on either, we will identify it in writing and refer you to your own counsel. And we do not select or implement software; where the integration requires a systems decision, we will frame the choice for you and stop there.

Our Approach

We work findings first, and we document as we go. Every figure that reaches a deliverable will tie back to a workpaper we can produce on request. Where we set the combined business against either of the legacy companies, we will show both views rather than a single blended number that hides the difference between them. We will bring interim results to you as they firm up, so that nothing in the final material arrives as a surprise. And we will keep our findings separate from our recommendations, and label each for what it is, because the two carry different weight and should not be read as though they were the same thing.

The Team

Jason Torres, Principal, will lead the engagement day to day and is your first point of contact on any matter of substance. Daniel Leach, Research Associate, will run the data collection and the consolidation work, and will be the person your finance staff hear from most often. Mary Parker, Research Associate, will assemble and source the background the analysis rests on, and will keep the record of what we were given and by whom. I read every deliverable before it leaves this office. For scheduling, data requests, and any matter needing a decision on your side, our point of contact will be you, Joseph Wallace, unless you direct us to someone else.

What We Will Need From You

The engagement depends on timely access to your records and your people. We will send a single consolidated data request at the start and keep a log of what is outstanding, and we ask that requests to your staff be routed through your office so that nobody is asked for the same file twice. Some of what we need touches personnel matters not yet settled following the merger. Where any restriction applies to that material, tell us and we will observe it.

Fee and Timing

Our fee to Carroll, Merritt and Williams for the engagement is $54,500, fixed for the scope described above. We will begin on April 22, 2009, and we plan on approximately four months from that point to the final deliverable. If you ask us to expand the scope, we will price the addition in writing and will not begin it until you have agreed the price.

Invoicing and Payment

We will invoice the fixed fee in equal monthly installments across the term, each payable within thirty days of its date. Out-of-pocket expenses, principally travel to your sites, are billed at cost and itemized on the invoice. We do not mark expenses up.

Duration and Termination

The engagement begins on the date set out above and continues until we deliver the final material or either of us ends it. Either party may terminate on fifteen days' written notice, for any reason or none. On termination you will owe the fee for work performed to the effective date, prorated against the fixed fee, together with expenses incurred, and we will hand over our work product in whatever state it has then reached.

Confidentiality

We will treat the information you give us as confidential, use it only for this engagement, and disclose it outside our firm only as you direct in writing or as law or professional standards require. Given that the business was recently merged, we understand that some of the material touches personnel questions still being resolved, and we will handle it with that in mind. We ask the same confidentiality of you as to our methods, our workpapers, and this fee arrangement.

Limitation of Liability

Our total liability arising out of this engagement, whether framed in contract, in tort, or on any other basis, is limited to the fees actually paid to us under it. Neither party will be liable to the other for indirect, incidental, or consequential loss, including lost profits, however it arises. This limit does not reach our own fraud or willful misconduct. Our deliverables are prepared for your internal use; if you intend to give one to a third party who may rely on it, raise it with us first so that we can address the reliance in writing.

Governing Law

This letter is governed by the law of the state in which our principal office sits, without regard to its conflict of laws rules. Any dispute we cannot resolve between us will go to mediation before either party commences litigation.

If these terms are acceptable, please sign both copies of this letter and return one to us; the other is yours to keep. We are glad to be doing this work for Carroll, Merritt and Williams, and we will be ready to begin on the date set out above.

Sincerely,

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Julie Ramsey
Managing Principal
Date: April 12, 2009

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Joseph Wallace
Chief Financial Officer, Carroll, Merritt and Williams

Date: April 12, 2009